

		joinder one week later.” (Mot. at p. 9.) In support of this argument, Pelorus cites to paragraphs 7 and 8 of its counsel’s declaration. Paragraphs 7 and 8 state the dates the motion and joinder were filed, but neither paragraph says anything about the defendants’ motivation for filing. Nor does Pelorus put on evidence that it served discovery requests before the motion was filed. Second, Pelorus argues the delay motivation is shown by the defendant’s decision to submit on the Court’s tentative ruling without presenting oral argument. Pelorus reads far too much into this decision. “Submission on a tentative ruling is neutral; it conveys neither agreement nor disagreement with the analysis.” (<i>Mundy v. Lenc</i> (2012) 203 Cal.App.4th 1401, 1406.) Third, Pelorus argues an email from the CNG Defendants’ counsel “emphasized the effect of their motion as creating delay.” (Mot. at p. 10.) The Court disagrees with this reading of the email. As the CNG Defendants argue in their opposition, the email is better read as a routine scheduling conferral between parties. (Opp. at pp. 12-13.) Finally, Pelorus argues the anti-SLAPP motion was filed to deny Pelorus its procedural due process rights. This argument makes little sense. Pelorus puts on no evidence that the delay associated with an anti-SLAPP motion will deny it the ability to have its claims heard in court. The Court does not see how delay equates with denial in this case. Moreover, to the extent the hearing on the anti-SLAPP motion was further delayed when it was continued from July 10 to August 4, that delay came at the request of Pelorus’s counsel. (ROA 76.) Pelorus has not shown the anti-SLAPP motion was filed for the sole, subjective purpose of delay.
7	Rivera vs. Simply Fresh, LLC 2025-01532908	Defendant’s Petition to Compel Arbitration Defendant Adept HR, Inc. moves to compel arbitration of Plaintiff Darwin Sanchez Rivera’s claims. Adept’s motion is joined by Defendant Simply Fresh, LLC. The motion is GRANTED. Plaintiff is ordered to arbitrate his claims (including the individual component of his PAGA claim) on an individual basis. His class claims are dismissed without prejudice. The representative component of his PAGA claim is stayed pending completion of arbitration. Because the arbitration agreement delegates questions of enforceability to the arbitrator, Plaintiff may renew his arguments about unconscionability in arbitration. An arbitration review conference will be held in Department CX-101 on June 30, 2027 at 8:30 a.m. <u>GROUND FOR RULING</u> I. <u>Existence of Agreement</u> A. <u>Standard of Review</u> The moving party bears the burden of proving the existence of an arbitration agreement by the preponderance of the evidence. (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 164.) But the burden of production shifts in a three-step process. (<i>Id.</i>, at p. 165.) “First, the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’ [Citation.] The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’” (<i>Ibid.</i>) “If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. [Citation.] The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the

	agreement.” (<i>Ibid.</i>) “If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (<i>Id.</i>, at pp. 165-166.) B. <u>Analysis</u> Adept meets its step one burden. Attached to the first declaration of Betsy Lanza (included in ROA 34) as Exhibit A is an agreement to arbitrate purporting to bear the electronic signatures of both Plaintiff and Adept representative Elias Contreras. Plaintiff meets his shifted step two burden. He testifies: “To be clear from the outset, prior to this lawsuit — I have never seen [the arbitration agreement], let alone sign [sic] it. Indeed, during my employment with Adept, I never electronically signed any employment documents, including an arbitration agreement.” (Sanchez Decl. (included in ROA 43) ¶ 6.) Plaintiff also puts on evidence he contends shows it was impossible for him to have signed the agreement as Adept claims. Attached to his counsel’s declaration is an excerpt from his personnel file that was produced by Adept. The excerpt includes a list titled “Policy Acknowledgment Signatures.” The list identifies fourteen separate documents, including an arbitration agreement. Each listed document has the following notation: “Employee Signature: Darwin Sanchez 05/31/2024 10:02:17 PM GMT.” (Adams Decl. (included in ROA 43) Ex. B.) Plaintiff argues it is impossible for him to have signed fourteen documents in the exact same second, let alone to have read them and signed them. The burden therefore shifts to Adept to prove the existence of an agreement by preponderance of the evidence. Adept submits a second declaration from Betsy Lanza, its Human Resources Manager. (ROA 49.) Lanza explains that when a person wishes to apply for a job with Adept, he or she must first request an application. Adept will send an email to the email address provided by the applicant. The email includes a link to the application materials on Adept’s online portal. The portal offers application materials in both English and Spanish. The applicant is prompted to create a unique PIN that only he or she knows. The PIN is used to electronically sign the application forms, which include an arbitration agreement. When the applicant has signed all the forms, Adept’s recruiters are notified, and they are able to electronically countersign on behalf of the company. (2nd Lanza Decl. ¶ 4.) Unless the applicant signs all the forms, including the arbitration agreement, his or her application cannot move forward. (<i>Id.</i> ¶ 5.) As to the time stamp in Plaintiff’s personnel file, Lanza explains that once all the forms are signed, the applicant submits the entire application package at once. The time stamp in Plaintiff’s personnel file reflects the time that his signature on each document was submitted to Adept, not the time he entered his PIN. (<i>Ibid.</i>) Taking all of the above into account, the Court finds Adept has proven the existence of an agreement to arbitrate by the preponderance of the evidence. II. <u>Terms of Agreement</u> There is no dispute that the agreement covers all claims at issue here, requires individual arbitration of claims, contains a class and representative action waiver, and states that it is governed by the FAA except in circumstances not present in this case. III. <u>Unconscionability</u> Plaintiff contends the agreement is unconscionable and thus unenforceable.
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8	Padilla vs. Walt Disney Parks and Resorts U.S. Inc. 2019-01077209	Defendant’s Motion for Judgment on the Pleadings Defendant Walt Disney Parks and Resorts U.S., Inc. (WDPR) moves for judgment on the pleadings regarding the Phase One PAGA claims of Plaintiff David Anthony Padilla insofar as those claims are based on meal and rest break violations. For the reasons set forth below, WDPR’s motion is GRANTED WITHOUT LEAVE TO AMEND. WDPR’s unopposed requests for judicial notice are GRANTED. On its own motion, the Court proposes to take judicial notice of the Los Angeles County Superior Court’s model settlement agreement for class/PAGA actions. <u>GROUND S FOR RULING</u> I. <u>Brief Background</u> Following several summary adjudication and class certification/decertification rulings, there are no more class claims in this matter. Padilla’s PAGA claims remain to be tried. On July 13, 2026, the Court bifurcated the case. A Phase One trial scheduled for January 2027 will deal with Padilla’s individual claims, while a subsequent Phase Two trial will deal with Padilla’s representative claims. WDPR contends Padilla’s PAGA claims based on meal and rest break during the time period relevant to Phase One are barred by claim preclusion following the entry of judgment in <i>Valenzuela v. Walt Disney Parks and Resorts U.S., Inc.</i>, C.D.Cal. No. 8:17-cv-01988-JVS-DFM. Accordingly, it moves for judgment on the pleadings. II. <u>Standard of Review</u> “A motion for judgment on the pleadings is akin to a general demurrer; it